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File No.: EXP202314247

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by IBERDROLA CLIENTES, S.A.U. (hereinafter, the appellant), against the resolution issued by the Presidency of the Spanish Agency for Data Protection, dated April 8, 2025, and based on the following: FACTS

FIRST: On April 8, 2025, a resolution was issued by the Presidency of the Spanish Agency for Data Protection in file EXP202314247. The resolution was notified to the appellant on April 15, 2025, as evidenced in the file.

SECOND: On May 20, 2025, the appellant submitted a recourse for reconsideration to the AEPD against the resolution indicated in the previous point, in which it expresses its disagreement with it.

To the above facts, the following legal grounds apply:

LEGAL GROUNDS

I

Competence

The Presidency of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Grounds for inadmissibility

Article 116 of the LPACAP establishes in its letter d) as a ground for inadmissibility of administrative recourses "The expiration of the period for filing the recourse."

III

Calculation of the filing period

According to the provisions of Article 124 of the LPACAP: "The period for filing the recourse for reconsideration shall be one month, if the act is express."

Article 119 of the same law adds that: "The resolution of the recourse will fully or partially uphold or dismiss the claims made therein or declare its inadmissibility."

Regarding the calculation of the indicated period, it must be attended to the provisions of paragraph 4 of Article 30 of the LPACAP which states: "If the period is set in months or years, these will be calculated from the day following that on which the notification or publication of the act in question takes place, or from the day following that on which the estimation or dismissal by administrative silence occurs. The period will conclude on the same day on which the notification, publication, or administrative silence occurred in the month or year of expiration. If in the month of expiration there is no equivalent day to that on which the calculation begins, it shall be understood that the period expires on the last day of the month."

In this case, the resolution of the Presidency of the Spanish Agency for Data Protection, dated April 8, 2025, was notified to the appellant on April 15, 2025, and the recourse for reconsideration was filed on May 20, 2025.

Therefore, it can be concluded that the filing of the recourse for reconsideration on the indicated date exceeds the legally established filing period, and thus the recourse must be declared inadmissible for being out of time.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE INADMISSIBLE the recourse for reconsideration filed by IBERDROLA CLIENTES, S.A.U. against the resolution of this Agency, issued on April 8,

2025, in file EXP202314247.

SECOND: TO NOTIFY this resolution to IBERDROLA CLIENTES, S.A.U.

Against this resolution, which concludes the administrative procedure, a contentious-administrative recourse may be filed within a period of two months from the day following the notification of this act, in accordance with the provisions of Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, according to the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned Law.

1025-020125

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